

Rama Kant Tiwari v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 February 2020 · Writ-C No. 3742 of 2020 · Writ-C No. 3742 of 2020 · **Writ disposed; speaking order directed; s.127 liberty; stay.**

HEADNOTE

A demand notice is not quashed on merits where the consumer says objections remain undecided and the Supply Code, 2005 was not followed. The consumer must appear before the Executive Engineer with the objection and evidence; the Engineer is to pass a speaking final order; coercive action is stayed for a short window; and an appeal under section 127 of the Electricity Act, 2003 lies against that final order. Non-appearance revives the demand.

FACTUAL SUMMARY

Rama Kant Tiwari petitioned the Allahabad High Court for certiorari to quash a demand notice dated 7 July 2018 issued by the electricity authorities. He alleged that the respondents were taking coercive action without deciding his objection and without following the Uttar Pradesh Electricity Supply Code, 2005. Counsel for the electricity department was heard. The Court did not try the demand or the Code-compliance allegation on the merits.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

speaking final order on demand objection, then section 127 appeal

HOLDING

Where a consumer seeks certiorari against a demand notice on the ground that objections remain undecided and the U.P. Electricity Supply Code, 2005 has not been followed, the High Court will not quash the demand on merits. The consumer is directed to appear before the Executive Engineer with the objection and evidence; the Engineer must pass a speaking final order within the time fixed; coercive action is stayed for five weeks or until disposal of the objection, whichever is earlier; and if aggrieved by the final order the consumer may appeal under section 127 of the Electricity Act, 2003. If the consumer fails to appear and file the objection, the demand notice stands revived. ¶ 1

PRINCIPLE TAGS

alternative-remedy-section-127-appeal After directing the Executive Engineer to pass a speaking final order on the pending objection to the demand notice, the Court left any further challenge to section 127 of the Electricity Act, 2003 and did not decide the demand on merits. ¶ 1

relegation-to-section-127-appeal-on-merits-limitation-not-examined The validity of the 7 July 2018 demand and the alleged Supply Code, 2005 non-compliance were not examined; those questions were left to the speaking order and, if needed, a section 127 appeal. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 7 JULY 2018 DEMAND NOTICE AND ALLEGED NON-COMPLIANCE WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

The Court did not examine the demand or the Code on merits; it directed a speaking final order on the pending objection. ¶ 1